

25LBCV02551 25LBCV02551

County: los-angeles

Division: Civil Law and Motion

Department: S27

Hearing date: 2026-09-15

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Case Number: 25LBCV02551 Hearing Date: September 15, 2026 Dept: S27

Background Facts

Plaintiffs, Zachary Staebler and

Thi X. Staebler filed this action against Defendant, American Honda Motor Co., Inc. for violations of the Song-Beverly Act, breach of implied warranty, and fraudulent inducement – concealment.

Motion for Summary

Adjudication

The caption of Defendant's motion indicates it is a motion for summary adjudication, not for summary judgment. It was reserved as a motion for summary adjudication.

Defendant's notice of motion

indicates Defendant moves for "judgment in its favor because Plaintiffs do not have any evidence to support the causes of action against AHM or prayer for punitive damages." It goes on to state, "AHM is entitled to judgment in its favor as a matter of law because Plaintiffs do not have any evidence to support their fifth cause of action for fraudulent inducement against AHM." The notice of motion closes by indicating AHM "bases its motion for summary judgment or, alternatively, summary adjudication" on various documents.

Defendant's notice of motion does not specify

what issues it seeks to have adjudicated, and its separate statement does not comply with CRC 3.1350(b) and (h), which require the notice of motion to set

forth each issue to be adjudicated and the separate statement to repeat the issues verbatim. The separate statement states two purported grounds for summary adjudication of the concealment cause of action, but does not address any other cause of action, and does not address punitive damages.

It is not clear whether Defendant seeks summary judgment, summary adjudication of the cause of action for fraudulent concealment, and/or summary adjudication of the prayer for punitive damages. Because the notice is defective, the motion is summarily denied.

Defendant is ordered to give notice.